

Terms of Use of GoPaperless.ke

Last Updated: 01 JANUARY 2025

Welcome to GoPaperless.ke, a service provided by Tendaworld Ltd. ("we," "us," or "our"). These Terms of Use ("Terms") govern your access to and use of the GoPaperless.ke website, application, API, and related services (collectively, the "Services").

By creating an account, accessing, or using the Services, you agree to be bound by these Terms. If you are using the Services on behalf of an organization, you represent that you have the authority to bind that organization to these Terms, and "you" and "your" will refer to that organization.

1. Definitions

- **"Account"** means a unique account created for you to access our Services.
- **"Customer Data"** means any documents, templates, information, or data uploaded, stored, or processed through your Account.
- **"Electronic Signature"** means an electronic sound, symbol, or process attached to or logically associated with a record and executed or adopted by a person with the intent to sign the record.
- **"Signer"** means any individual or entity designated by a User to review, accept, or sign a document via the Services.
- **"User"** means any individual or entity utilizing the Services to send, manage, or sign documents.

2. Electronic Signatures and Legal Recognition

2.1 Consent to Electronic Records: By using the Services, you consent to do business electronically and to sign documents using Electronic Signatures. You agree that Electronic Signatures executed through the Services are intended to be legally binding equivalents of traditional handwritten signatures.

2.2 User Responsibility for Legal Validity: You acknowledge that laws governing Electronic Signatures (such as the KENYA KICA (Cap. 411A), ECDNA regulation, CMCA (Cap. 79C), or US ESIGN Act, UETA, or CHINA ESL, or INDIA IT Act, or the EU eIDAS regulation) vary by jurisdiction. You are solely responsible for determining whether a particular document or contract is appropriate for execution via an Electronic Signature and whether it satisfies the legal requirements of your jurisdiction.

2.3 Platform Status: Tendaworld Ltd. is not a party to any agreement, contract, or document executed between Users and Signers through the Services. We make no representations or warranties regarding the legal validity, enforceability, or binding nature of any document signed using the Services.

3. Account Registration and Security

3.1 Account Creation: To use certain features, you must register for an Account. You agree to provide accurate, current, and complete information during registration and to update such information as necessary. **3.2 Security:** You are responsible for safeguarding your login credentials. You agree not to disclose your password to any third party and to notify us immediately of any unauthorized use of your Account. You are responsible for all activities that occur under your Account.

4. Acceptable Use and Restrictions

You agree to use the Services only for lawful purposes. You shall not:

- Use the Services to send, store, or sign any documents that are fraudulent, defamatory, obscene, or illegal.
- Upload viruses, malware, or any other malicious code.
- Attempt to gain unauthorized access to the Services, other User accounts, or our underlying infrastructure.
- Resell, sublicense, timeshare, or otherwise share the Services with any third party without our prior written consent.
- Reverse engineer, decompile, or disassemble any part of the Services.

5. Customer Data and Privacy

5.1 Ownership: You retain all rights and ownership to your Customer Data. By uploading Customer Data, you grant us a limited, worldwide, non-exclusive license to host, process, and display the Customer Data strictly as necessary to provide the Services. **5.2 Privacy Policy:** Our collection, use, and disclosure of personal information are governed by our [Privacy Policy](#). **5.3 Document Retention:** While we may provide storage for executed documents, you are solely responsible for retaining copies of your documents. We reserve the right to delete Customer Data from inactive accounts after 7 days of notice, in accordance with our data retention policies.

6. Subscription, Fees, and Payment

6.1 Billing: Use of premium features requires payment of subscription fees. Fees are billed in advance on a recurring basis (e.g., monthly or annually) as selected during purchasing. All fees are non-refundable unless otherwise stated or required by law. **6.2 Taxes:** You are responsible for all applicable taxes associated with your use of the Services, excluding taxes based on our net income. **6.3 Downgrades and Cancellation:** You may cancel your subscription at any time. Cancellation will take effect at the end of your current billing cycle.

7. Intellectual Property

Tendaworld Ltd. and its licensors retain all rights, title, and interest in and to the Services, including all underlying software, technology, interfaces, logos, and trademarks. No rights are granted to you other than the limited right to use the Services in accordance with these Terms.

8. Warranties and Disclaimers

8.1 No Legal Advice: The Services, templates, and any associated materials are provided for operational efficiency and do not constitute legal advice. **8.2 "As-Is" Provision:** THE SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE." TO THE MAXIMUM EXTENT PERMITTED BY LAW, Tendaworld Ltd. DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. WE DO NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE, OR COMPLETELY SECURE.

9. Limitation of Liability

TO THE FULLEST EXTENT PERMITTED BY LAW, IN NO EVENT SHALL Tendaworld Ltd., ITS DIRECTORS, EMPLOYEES, OR AFFILIATES BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, LOST DATA, OR BUSINESS INTERRUPTION. OUR TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATING TO THESE TERMS SHALL NOT EXCEED THE AMOUNT PAID BY YOU TO US IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

10. Indemnification

You agree to indemnify, defend, and hold harmless Tendaworld Ltd. and its officers, directors, employees, and agents from any claims, damages, liabilities, and expenses (including attorneys' fees) arising from: (a) your use of the Services; (b) your violation of these Terms; or (c) any dispute between you and any Signer or third party regarding a document processed through the Services.

11. Termination

11.1 By You: You may terminate these Terms at any time by closing your Account and ceasing all use of the Services. **11.2 By Us:** We may suspend or terminate your Account if you violate these Terms, fail to pay applicable fees, or if required by law. We will provide reasonable notice before suspending your Account, except in cases of severe violations or security risks. **11.3 Effect of Termination:** Upon termination, your right to use the Services will immediately cease. Sections governing intellectual property, disclaimers, liability limitations, and indemnification shall survive termination.

12. Governing Law and Dispute Resolution

12.1 Governing Law: These Terms shall be governed by and construed in accordance with the laws of The Republic Of Kenya, without regard to its conflict of law principles. **12.2 Arbitration:** Any dispute arising out of or in connection with these Terms shall be resolved by binding arbitration administered by the Nairobi Centre for International Arbitration in Nairobi, Kenya.

13. Modifications to Terms

We reserve the right to modify these Terms at any time. We will notify you of material changes by posting the updated Terms on our website and/or sending an email to the address associated with your Account. Your continued use of the Services after the effective date of the revised Terms constitutes your acceptance of the changes.

14. Contact Information

If you have any questions about these Terms, please contact us at: **Tendaworld Ltd.** | P.O. Box 386 – 00517, Nairobi, Kenya | mail@tenda.world | +254778146112